



CHAPTER li.

An Act to confirm a Provisional Order under the Burgh A.D. 1914.
Police (Scotland) Act 1892 relating to Inverness
Water and Gas. [8th July 1914.]

WHEREAS His Majesty's Secretary for Scotland has made
the Provisional Order set forth in the schedule hereunto
annexed under the provisions of the Burgh Police (Scotland) 55 & 56 Vict.
Act 1892 and it is requisite that the said Order should be c. 55.
confirmed by Parliament:

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present Parliament
assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto Confirmation
annexed shall be and the same is hereby confirmed. of Order in
schedule.

2. This Act may be cited as the Inverness Water and Gas Short title.
Order Confirmation Act 1914.

A.D. 1914.

SCHEDULE.

INVERNESS WATER AND GAS.

Provisional Order.

WHEREAS by the Burgh Police (Scotland) Act 1892 it is (inter alia) provided (section 45) that whenever it shall appear to the commissioners of any burgh to which that Act applies that they require additional powers for the better carrying out of the purposes thereof and specially powers relating to the supply of gas or water or to roads or streets or to the drainage or sewers or the utilisation of sewerage in addition to the powers conferred by the Public Health Acts or for the repeal or amendment of any local Act of Parliament relating to such subjects or for the adjustment of the provisions of the said Act or for the other purposes therein mentioned they may apply to the Secretary for Scotland for a Provisional Order and that by section 46 of the said Act the Secretary for Scotland may after such inquiry as he may direct issue a Provisional Order either in accordance with the prayer of the application or with such modifications or alterations as may appear to him requisite but that no Provisional Order shall be of any validity unless the same has been confirmed by Parliament:

And whereas the said Burgh Police (Scotland) Act 1892 is in force within the Burgh of Inverness (herein-after referred to as "the burgh"):

And whereas by the Inverness Water and Gas Act 1875 (herein-after called "the Act of 1875") the provost magistrates and councillors of the burgh as then commissioners of police of the burgh (herein-after referred to as "the Commissioners") acquired the undertaking of the Inverness Gas and Water Company and the right to make and maintain waterworks and gasworks and to supply gas and water within the burgh and places adjacent:

And whereas the Commissioners were authorised to borrow for the purposes of the waterworks undertaking any sum not exceeding forty-one thousand pounds on the security of the rates assessments and charges by the said Act authorised and for the purposes of the gas undertaking any sum not exceeding forty thousand pounds on the security of the gasworks undertaking and the rents charges and revenues to arise from the supply of gas and the sale of residual products:

And whereas the cost of such purchase and of carrying into execution the Act of 1875 had considerably exceeded the amount estimated at the time of the application for the Act of 1875 and the

moneys which the Commissioners were authorised to borrow by that Act and had borrowed for the purposes of the said water and gas supply and of that Act were found to be insufficient to defray the cost thereof: A.D. 1914.

And whereas by the General Police and Improvement (Scotland) Act (1862) Order Confirmation (Inverness) Act 1879 (herein-after called "the Order of 1879") the sum authorised to be borrowed by the Commissioners for the purposes of the said waterworks undertaking was increased to the sum of fifty-six thousand pounds and for the purposes of the said gasworks undertaking to the sum of forty-five thousand pounds:

And whereas by the General Police and Improvement (Scotland) Act (1862) Order Confirmation (Inverness) Act 1892 (herein-after called "the Order of 1892") the sum authorised to be borrowed by the Commissioners for the purposes of the said waterworks undertaking was further increased to the sum of sixty-six thousand pounds and for the purposes of the said gasworks undertaking to the sum of fifty-seven thousand pounds:

And whereas by the Inverness Gas and Water Order Confirmation Act 1905 (herein-after called "the Order of 1905") the sum authorised to be borrowed for the purposes of the said waterworks undertaking was further increased to the sum of seventy-six thousand pounds and for the purposes of the said gasworks undertaking to the sum of seventy-two thousand pounds:

And whereas the provost magistrates and councillors of the said burgh (herein-after referred to as "the Corporation") are under the Town Councils (Scotland) Act 1900 now in the room and place of the Commissioners:

And whereas the said sum of seventy-six thousand pounds has been duly expended by the Corporation for the purposes of their water undertaking:

And whereas the demand for water in the said Burgh of Inverness and the suburbs and places adjacent thereto has increased and is increasing necessitating the laying of a second main from Loch Ashie to the Culduthel Reservoir the laying down of new distributing mains and the enlargement of the existing mains and other works and it is expedient that powers should be conferred on the Corporation to borrow additional money to the extent herein-after provided to defray the cost of the said works:

And whereas the sum of sixty-seven thousand pounds of the said sum of seventy-two thousand pounds has been duly expended by the Corporation for the purposes of their gas undertaking:

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And whereas the demand for gas in Inverness and the suburbs thereof has increased and is increasing and in order to meet such demand the Corporation require to further extend and improve their works and it has become necessary that powers should be conferred on the Corporation to borrow additional money to the extent hereinafter provided to defray the cost of such extensions and improvements:

And whereas it is expedient that the other provisions contained in this Order should be sanctioned:

And whereas the Corporation have presented to me as Secretary for Scotland a petition setting forth the matters herein-before recited:

And whereas after due inquiry I have resolved to issue a Provisional Order in the terms herein-after expressed:

Now therefore in pursuance of the powers vested in me by the Burgh Police (Scotland) Act 1892 I as Secretary for Scotland do by this Provisional Order direct as follows:—

Citation of
Order and
Acts.

1. This Order may be cited as the Inverness Water and Gas Order 1914 The Act of 1875 and the Acts confirming the Orders of 1879 1892 and 1905 and this Order may be collectively cited as the Inverness Water and Gas Acts 1875 to 1914.

Amendment
of Order of
1905.

2. Section 1 of the Provisional Order confirmed by the Inverness Gas and Water Order Confirmation Act 1905 shall be read as if the figures "1905" were inserted therein instead of the figures "1903."

Power to
borrow.

3.—(1) In addition to the sum of seventy-six thousand pounds which the Corporation are already authorised to borrow for the purposes of their water undertaking on the security of the water rates assessments and charges authorised by the Act of 1875 the Corporation may borrow on such security the further sum of fourteen thousand pounds And from and after the passing of the Act confirming this Order section 74 of the Act of 1875 as amended by the Orders of 1879 1892 and 1905 shall be read as if the words "ninety thousand pounds" had been inserted therein instead of the words "seventy-six thousand pounds."

(2) In addition to the sum of seventy-two thousand pounds which the Corporation are already authorised to borrow for the purposes of their gas undertaking on the security of their gasworks undertaking and of the rents charges and revenues accruing to them under the Act of 1875 the Corporation may borrow on such security the further sum of thirteen thousand pounds and from and after the passing of the Act confirming this Order section 75 of the Act of 1875 as amended by the Orders of 1879 1892 and 1905 shall be read as if the words "eighty-five thousand pounds" had been inserted therein instead of the words "seventy-two thousand pounds."

4. All mortgages granted by the Corporation for securing money borrowed under the provisions of the Act of 1875 and the Orders of 1879 1892 and 1905 and subsisting at the date of the passing of the Act confirming this Order shall while subsisting and without prejudice to their priorities inter se have priority over any mortgages granted by the Corporation under the provisions of this Order.

A.D. 1914.

Priority of
existing
mortgages.

5. The Corporation shall from and after the passing of the Act confirming this Order out of the revenues respectively liable set apart annually as a sinking fund for the repayment of the additional money authorised to be borrowed by this Order such a sum as will produce a fund equal to three per centum per annum upon the sum or sums of money so to be borrowed and which sum of three per centum per annum the Corporation shall annually appropriate set apart and invest at the highest rate of interest which can be had for the same in securities in which trustees are by law for the time being authorised to invest or they shall lodge the same in bank on deposit receipt as a sinking fund applicable and to be applied by the Corporation from time to time to the repayment of the moneys borrowed under this Order until the amount so borrowed shall be extinguished or the Corporation may agree with the lender so that the amounts of three per centum shall annually be receivable by him in liquidation pro tanto of the principal debt Provided that in respect of all moneys already borrowed (excluding loans on account of which contributions providing for full repayment have already been set aside out of revenue) and of all moneys to be borrowed for the purchase of gas meters and stoves under the Act of 1875 as amended by the Orders of 1879 1892 and 1905 and this Order the sum to be annually set apart as a sinking fund shall be such a sum as will produce a fund equal to five per centum per annum upon the moneys so borrowed which sum of five per centum shall be set apart and invested as herein-before provided and applied by the Corporation from time to time in repayment of the moneys borrowed under the said Act and Orders Provided also that any money borrowed to defray the cost of works of a temporary character for the purpose of a supplementary supply of water shall be paid off in such period as the Secretary for Scotland on the application of the Corporation may sanction Sections 96 and 97 of the Act of 1875 shall not apply to the additional money authorised to be borrowed by this Order.

Sinking
fund.

6. Notwithstanding anything contained in section 101 of the Act of 1875, it shall be lawful for the Corporation and they are hereby required to reserve and set apart the sum of four thousand five hundred pounds of the accumulated revenue surplus at 15th May 1913 towards providing a working balance and the said sum shall not be used for any other purpose and the amount of any working balance so provided

Working
balance.

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A.D. 1914. shall not at any time exceed one-third of the total revenue of the
— undertaking.

Gas contin-
gency and
depreciation
of works
fund.

7. It shall be lawful for the Corporation and they are hereby required as from and after the fifteenth day of May nineteen hundred and fifteen to set apart annually from the revenues of the gas undertaking as a gas contingency and depreciation of works fund the following sums:—

(1) In the year ending on the fifteenth day of May nineteen hundred and fifteen a sum of not less than five hundred pounds:

(2) In each succeeding year a sum not less than a sum bearing to the said sum of five hundred pounds the same ratio as the number of cubic feet of gas sold by the Corporation in such year bears to the number of cubic feet of gas sold by them in the year ending on the said fifteenth day of May nineteen hundred and fifteen and the sums so set apart shall until applied to one or other of the purposes hereinafter mentioned be invested in securities in which trustees are by law for the time being authorised to invest the Corporation being at liberty from time to time to vary and transpose such investments and pending such investment the said sums may be lodged in bank on deposit receipt:

(3) The Corporation shall from time to time apply the fund formed in terms of the immediately preceding subsection together with any accumulation of interest thereon in payment of the cost and expenses of any extension of their works or of any extraordinary repairs thereon or of enlarging or renewing or increasing the number of their mains and pipes or in meeting any extraordinary contingency liabilities and claims which may arise or may be incurred in respect of the gasworks or gas undertaking of the Corporation provided that the said fund shall not be applied in defraying the cost of renewing meters or gas stoves.

Gas guaran-
tee rate.

8. It shall be lawful for the Corporation and they are hereby required from time to time to impose levy and collect as part of the burgh general assessment under the Burgh Police (Scotland) Act 1892 such a rate as shall be necessary to meet any deficiency in the moneys required to pay the interest on and instalments of moneys borrowed and to be borrowed for gas purposes under the Inverness Water and Gas Acts 1875 to 1914 and the sum required to be paid into the sinking fund for repayment of such money.

Costs of
Order.

9. All costs charges and expenses of and incidental to preparing for obtaining and confirming this Order or otherwise in relation thereto

shall be paid by the Corporation out of the moneys to be borrowed by them under the powers of this Order or out of any other moneys received by them or out of any rates or assessments which they are authorised to levy Provided that all borrowed money so applied shall be repaid within five years from the commencement of this Order. A.D. 1914.

Given under my hand and seal at Whitehall this seventh day of
April one thousand nine hundred and fourteen.

(L.S.)

T. McKINNON WOOD.

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